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Amending Acts

1. Income Tax Act, 2058 2058.12.19
2. Some Nepal Laws Amendment Act, 2063 2063.06.28
3. Some Nepal Acts Amendment Act, 2064 2064.05.09
4. This Act has come into effect from Jestha 15, 2065. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
5. Some Nepal Acts Amendment Act, 2072 2072.11.13
6. Act Made to Amend Some Nepal Acts Related to Education, 2077 2077.03.11
7. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 33 of the year 2053

An Act Made to Make Provision Relating to Pokhara University

Preamble: Whereas, it is desirable to establish and operate Pokhara University to increase the participation of the private sector in higher education to the maximum, to provide qualitative and standard higher education opportunities in arts, science, management, law, education, technical and other professional subjects to the general public of all areas in an easily accessible manner, to ensure the supply of skilled human resources for national development, and to make the educational and academic environment of the country more clean, dignified, and fruitful by enhancing the quality of higher education on a competitive basis,

Now, therefore, Parliament has enacted this Act in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be cited as the "Pokhara University Act, 2053".

(2) This Act shall come into force on such date as the Government of Nepal may appoint by a notification published in the Nepal Gazette. This Act is appointed to come into force from 2054.4.1. (N.G. 2054.4.1). 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "University" means the Pokhara University established pursuant to Section 3. (b) "Assembly" means the University Assembly pursuant to Section 7. (c) "Academic Council" means the Academic Council pursuant to Section 10. (d) "Executive Council" means the Executive Council pursuant to Section 12. (e) "Service Commission" means the Service Commission pursuant to Section 14. (f) "Faculty" means the Faculty pursuant to Section 15. (g) "Research Centre" means the Research Centre pursuant to Section 16. (h) "Faculty Board" means the Faculty Board pursuant to Section 17. (i) "Dean" means the head of a Faculty. (j) "Campus" means a constituent campus of the University, and the expression also denotes a campus affiliated with the University. (k) "Teacher" means

a Professor, Associate Professor, Reader, or Assistant Professor imparting education or engaged in research work at the University, and the expression also denotes instructors of various levels of the University and any person designated as a teacher by rules made under this Act. (l) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act. 3. Establishment of the University: (1) There is hereby established Pokhara University for the conduct of higher level teaching institutions for arts, science, law, management, education, technical, and other prescribed subjects. (2) The central office of the University shall be located in Kaski District. 4. University to be an Autonomous Corporate Body: (1) The University shall be an autonomous and incorporated institution with perpetual succession. (2) The University shall have a separate seal for all its acts and proceedings. (3) The University may acquire, possess, sell, or otherwise dispose of movable and immovable property like an individual. (4) The University may sue and be sued in its own name like an individual. 5. Organization of the University: The organization of the University shall be as follows, and their collective entity shall constitute the University:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Service Commission, (e) Faculty, (f) Faculty Board, (g) Research Centre, (h) Campus, (i) Curriculum Development Centre, (j) Other prescribed bodies. 6. Office Bearers of the University: The University shall have the following office bearers:- (a) Chancellor, (b) Pro-Chancellor, (c) Vice-Chancellor, (d) Chairperson of the Service Commission, (e) Registrar, (f) Deans, (g) Head of the Research Centre, (h) Campus Chiefs, (i) Head of the Curriculum Development Centre, (j) Prescribed or other office bearers. 7.

Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the University. (2) The Assembly shall be constituted as follows:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Vice-Chancellor - Member (d) Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (e) Two from among the Vice-Chancellors of other Universities - Member (f) Secretary, Ministry of Education, Science and Technology Ministry of Education, Science and Technology - Member (g) Three from among educationists - Member (h) Deans - Member (i) Mayor and Deputy Mayor of the Municipality where the central office of the University is located - Member (j) Four from among the Campus Chiefs - Member (k) Three from among the Chairpersons of Subject Committees of the University - Member (k1) Added by the Some Nepal Laws Amendment Act, 2063. One representative of the Nepal Professor Association - Member (l) Representative, Pokhara University Professors Association - Member (m) Three from among the teachers - Member (n) Deleted by the Some Nepal Acts Amendment Act, 2072 (o) Chairperson of the University Grants Commission or a member of that Commission designated by him/her - Member (p) Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077. Three persons, including at least one woman, on an inclusive basis from among philanthropists and social workers - Member (q) Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077. Four persons, including at least two women, on an inclusive basis from among industrialists, businessmen, and farmers - Member (r) Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077. Two persons on an inclusive basis from among donors - Member (s) Deleted by the Act Made to Amend Some Nepal Acts Related to Education, 2077 (t) Two from among the Presidents of the Free Students' Unions of the campuses - Member (u) Registrar - Member-Secretary (3) The nomination of members of the Assembly, other than ex-officio members, shall be made by the Chancellor on the recommendation of the Executive Council. (4) The term of office of nominated members shall be three years. (5) If the position of a nominated member becomes vacant for any reason, another person shall be nominated for the remaining period by completing the procedure pursuant to Sub-section (3). 8.

Meeting of the Assembly: (1) A meeting of the Assembly shall be held at least once a year. (2) The meeting of the Assembly shall be held on such date, time, and place as may be fixed by the Chairperson of the Assembly. (3) Notice of the meeting, along with the agenda of subjects to be discussed, shall be given by the

Member-Secretary of the Assembly to all members at least fifteen days before the meeting. (4) If at least fifty percent of the total number of existing members of the Assembly are present, the meeting shall be deemed to have a quorum. (5) The meeting of the Assembly shall be presided over by the Chairperson of the Assembly and, in his/her absence, by the Vice-Chairperson of the Assembly. In the absence of both the Chairperson and Vice-Chairperson, the meeting of the Assembly shall be presided over by the Vice-Chancellor. (6) In a meeting of the Assembly, the opinion of a majority shall prevail, and if votes are equal, the person presiding over the meeting shall have a casting vote. (7) Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077. The person presiding over the Assembly meeting shall certify the decision of the meeting. (8) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself. 9.

Functions, Duties, and Powers of the Assembly: The functions, duties, and powers of the Assembly shall be as follows:- (a) To determine the policies of the University, (b) To formulate long-term programs for the development of the University and to implement or cause to implement such programs, (c) To provide guidance to the University, (d) To conduct and manage or cause to conduct and manage the academic programs of the University, (e) To make or cause to make necessary arrangements regarding the establishment and affiliation of campuses, (f) To determine the various degrees to be conferred by the University, (g) To give directions and provide guidance to the constituent campuses of the University and the campuses affiliated with the University, (h) To permit the University to conduct any new program, (i) To determine or cause to determine the academic, educational, and administrative policies of the bodies under the University, (j) To approve the annual budget and program of the University, (k) To discuss the annual reports of the bodies under the University and evaluate the programs, (l) To appoint an auditor, discuss the audit report, and grant approval, (m) To pass rules relating to the University, (n) To approve the posts of teachers and employees required for academic and administrative work, (o) To constitute various committees, sub-committees, or task forces as required by the University, (p) To perform such other functions as prescribed. 10. Formation of the Academic Council: (1) There shall be formed an Academic Council as follows, to function as a body to organize the academic, educational, and research works of the University:- (a) Vice-Chancellor - Chairperson (b) Registrar - Member (c) Deans - Member (d) Five from among the Chairpersons of various Subject Committees of the University - Member (e) Head of the Research Centre - Member (f) Heads of the bodies relating to curriculum and examination of the University - Member (g) Four from among the Campus Chiefs - Member (h) Two from among the teachers - Member (i) Two from among the educationists who have made distinguished contributions in the academic field - Member (j) Dean designated by the Vice-Chancellor from among the Deans - Member-Secretary (2) The nomination of members other than ex-officio members shall be made by the Chancellor on the recommendation of the Vice-Chancellor. (3) The term of office of nominated members shall be three years. (4) If the position of a nominated member becomes vacant for any reason, another person shall be nominated for the remaining period by completing the procedure pursuant to Sub-section (2). (5) The procedure relating to the meeting of the Academic Council shall be as determined by the Academic Council itself. 11.

Functions, Duties, and Powers of the Academic Council: The functions, duties, and powers of the Academic Council shall be as follows:- (a) To determine the curriculum of subjects to be studied, researched, and trained under the University and to review all levels of educational, academic, and research works, (b) To prescribe the type of examinations, (c) To determine the qualifications and number of students for admission, (d) To formulate policies relating to research and grant approval to research programs, (e) To evaluate academic programs, (f) To determine the standard of teaching and research, (g) To advise the Executive Council on academic matters, (h) To perform such other functions as prescribed. 12. Formation of the

Executive Council: (1) There shall be an Executive Council consisting of the following members to function as the executive body of the University:- (a) Vice-Chancellor - Chairperson (b) One from among the Deans - Member (c) One from among the Campus Chiefs who are members of the Assembly - Member (d) Three from among the members of the Assembly, including one teacher - Member (e) Registrar - Member-Secretary (2) The members pursuant to Clauses (b), (c), and (d) of Sub-section (1) shall be nominated by the Chancellor on the recommendation of the Vice-Chancellor. (3) The term of office of nominated members shall be three years. (4) If the position of a nominated member becomes vacant for any reason, another person shall be nominated for the remaining period by completing the procedure pursuant to Sub-section (2). (5) The procedure relating to the meeting of the Executive Council shall be as determined by the Executive Council itself. 13.

Functions, Duties, and Powers of the Executive Council: The functions, duties, and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions and directions of the Assembly, (b) To prepare the annual program, budget, progress report, audit report, and other proposals of the University and submit them to the Assembly for approval, (c) To operate, look after, and preserve the fund and movable and immovable property of the University, (d) To sell, lease, or otherwise dispose of movable and immovable property of the University, subject to the policies and directions of the Assembly, (e) To coordinate, supervise, and inspect programs conducted by the University and submit reports thereof to the Assembly, (f) To prepare drafts of rules relating to the University and submit them to the Assembly for approval, (g) To appoint and promote teachers and employees required for the University on the recommendation of the Service Commission, (h) To accept donations, endowments, financial, and other assistance received by the University, (i) To determine student fees, (j) To perform such other functions as prescribed. 14. Service Commission: (1) There shall be a Service Commission as follows to recommend the appointment and promotion of teachers and employees of the University:- (a) Person appointed by the Chancellor - Chairperson (b) Member, Public Service Commission - Member (c) One from among the Professors - Member (2) The Chairperson and member pursuant to Clauses (a) and (c) of Sub-section (1) shall be appointed by the Chancellor on the recommendation of the Executive Council. (3) The term of office of the Chairperson and member appointed pursuant to Sub-section (2) shall be four years. (4) The procedure relating to the meeting of the Service Commission shall be as determined by the Service Commission itself. (5) The Service Commission, while recommending appointment and promotion of teachers, shall primarily base on academic capability and experience, and while recommending appointment and promotion of employees, shall primarily base on administrative efficiency and experience. (6) Other functions, duties, and powers of the Service Commission shall be as prescribed. (7) The functions, duties, and powers of the Chairperson and members of the Service Commission shall be as prescribed. (8) The remuneration and facilities of the Chairperson of the Service Commission shall be as prescribed. 15. Faculty: (1) There shall be such Faculties as prescribed for the prescribed subjects for higher education to be conducted by the University. (2) The functions, duties, and powers of the Faculties under Sub-section (1) shall be as prescribed. 16.

Establishment of Research Centres: (1) The University may establish various Research Centres to carry out educational, academic, and research works. (2) The functions, duties, powers, and provisions relating to operation of the Research Centres established pursuant to Sub-section (1) shall be as prescribed. 17. Formation of Faculty Board: (1) There shall be a Faculty Board as prescribed for the conduct of educational and academic programs in each Faculty. (2) There shall be such Subject Committees as prescribed under the Faculty Board pursuant to Sub-section (1). (3) The functions, duties, powers, and procedure relating to meetings of the Faculty Board and the committees under it shall be as prescribed. 18. Establishment and

Operation of Campuses: (1) The University may establish and operate campuses to provide higher education in various subjects, remaining within the ambit of the national education policy of the Government of Nepal. (2) Provisions relating to the operation of campuses established pursuant to Sub-section (1) shall be as prescribed. 19. Establishment of Curriculum Development Centre: (1) There shall be established a Curriculum Development Centre as prescribed for the determination and development of curriculum. (2) The functions, duties, and powers of the Curriculum Development Centre established pursuant to Sub-section (1) shall be as prescribed. 20. Affiliation with the University: (1) If any campus in the private sector desires to be operated after obtaining affiliation with the University, the University may grant affiliation to such campus. (2) A campus obtaining affiliation pursuant to Sub-section (1) shall comply with the conditions prescribed by the University. 21.

Special Provision Relating to Operating Constituent Campuses of Other Universities: (1) If it is necessary to operate any constituent campus of another University as a constituent campus of the University, the Government of Nepal shall form a committee comprising the Vice-Chancellors of the concerned Universities and the Campus Chief of that campus, and if such committee decides to operate that campus as a constituent campus of the University, the University shall operate that campus as a constituent campus. (2) If any campus is to be operated as a constituent campus of the University pursuant to Sub-section (1), the movable and immovable property and liabilities under the possession of that campus shall also devolve to that same campus under the University. (3) If any campus is to be operated as a constituent campus of the University pursuant to Sub-section (1), the teachers and employees working in that campus may, if they so desire, continue to serve as teachers and employees of the constituent campus of the University. (4) If any teacher or employee continues to serve in the constituent campus of the University pursuant to Sub-section (3), no change shall be made to their previous salary, facilities, and terms of service to their detriment. 22. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University and, when present, shall preside over the convocation of the University. (3) The Chancellor shall have the right to inspect or cause to be inspected or inquired into any matter or thing relating to the University. 23. Pro-Chancellor: (1) Minister of State for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) In the absence of the Chancellor, the Pro-Chancellor shall preside over the convocation of the University. (3) The Pro-Chancellor may inspect and give directions to the University as necessary. 24.

Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer working full-time at the University. (2) For submitting a recommendation for appointment to the post of Vice-Chancellor, a committee comprising the Pro-Chancellor as Chairperson and two other members of the Assembly shall be formed by the Chancellor, and the Vice-Chancellor shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years. (4) In the absence of the Vice-Chancellor, his/her work shall be as arranged by the Chancellor. (5) The remuneration, facilities, and other terms of service of the Vice-Chancellor shall be as prescribed. 25. Functions, Duties, and Powers of the Vice-Chancellor: (1) The functions, duties, and powers of the Vice-Chancellor shall be as follows:- (a) To give necessary directions and supervise all works and proceedings of the University. (b) To submit or cause to submit all proposals relating to subjects to be presented to the Assembly. (c) To preside over the convocation of the University in the absence of both the Chancellor and Pro-Chancellor. (d) To prepare or cause to prepare short-term and long-term programs for the development of the University. (e) To conduct discussions, negotiations, etc., with various bodies on behalf of the University. (f) To formulate various plans and programs within the approved policies of the University and submit them to the Assembly. (2) Except as stated in Sub-section (1), the Vice-Chancellor shall perform such other works as are not specifically

mentioned to be performed by any body or office bearer under this Act or rules made under this Act. The Vice-Chancellor shall promptly inform the Chancellor of such work and get it ratified by the meeting of the Assembly held immediately thereafter. (3) Except as stated in Sub-sections (1) and (2), other functions, duties, and powers of the Vice-Chancellor shall be as prescribed. 26. Registrar: (1) The Registrar shall be an office bearer working full-time at the University. (2) The Registrar shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor. (3) The term of office of the Registrar shall be four years. (4) The academic, financial, and personnel administration of the University shall be under the general supervision of the Registrar. (5) Other functions, duties, and powers of the Registrar shall be as prescribed. (6) The remuneration, facilities, and other terms of service of the Registrar shall be as prescribed.

Added by the Act Made to Amend Some Nepal Acts Related to Education, 2077.(7) The Registrar shall maintain records of decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. 27. Dean: (1) The Dean shall be the chief office bearer working full-time in the Faculty.

(2) The Dean shall be appointed by the Executive Council.

(3) The term of office of the Dean shall be four years.

(4) The functions, duties, and powers of the Dean shall be as prescribed.

(5) The remuneration, facilities, and other terms of service of the Dean shall be as prescribed. 28. Other Office Bearers of the University: (1) The University shall have such other office bearers as prescribed, including Campus Chiefs and the Head of the Curriculum Development Centre.

(2) The appointment, remuneration, facilities, other terms of service, and functions, duties, and powers of the Campus Chiefs, the Head of the Curriculum Development Centre, and other office bearers shall be as prescribed. Added by the Some Nepal Acts Amendment Act, 2064.28a. Period for Making Appointment: Notwithstanding anything elsewhere contained in this Act, if the post of any office bearer of the University falls vacant, the concerned authority shall make an appointment to fill such post within three months of the vacancy. Added by the Some Nepal Acts Amendment Act, 2064.28b. Power to Assign Responsibility: Notwithstanding anything elsewhere contained in this Act, if any post of the University falls vacant, until such post is filled, the Chancellor, on the advice of the Pro-Chancellor, may assign the responsibility of the Vice-Chancellor, and the Vice-Chancellor may assign the responsibility of any other office bearer, to any senior-most professor of the University for a maximum period of three months to conduct day-to-day functions. Added by the Act Made to Amend Some Nepal Acts Related to Education, 2077.28c.

Removal from Office: (1) If one-third of the existing members of the Assembly submit a written petition to the Chancellor to remove the Vice-Chancellor, Rector, Registrar, or Chairperson of the Service Commission from office on the ground that he/she has failed to fulfill the responsibility commensurate with his/her post, has not worked honestly, or has not behaved in a manner befitting the post, the Chancellor shall form a three-member investigation committee comprising a member of the Assembly as Chairperson, a member of the University Grants Commission, and the Secretary of the Ministry of Education, Science and Technology. (2) The investigation committee formed pursuant to Sub-section (1) shall conduct necessary investigation into the matter and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report pursuant to Sub-section (2), the Chancellor shall submit such report to the Assembly. (4) When the report submitted pursuant to Sub-section (2) is discussed, if at least fifty-one percent of the total number of members of the Assembly decide to remove the Vice-Chancellor, Rector, Registrar, or Chairperson of the Service Commission from office, the Chancellor shall remove the Vice-Chancellor, Rector, Registrar, or Chairperson

of the Service Commission from office. Provided that, before such removal, he/she shall not be deprived of an opportunity to submit a defence. (5) The procedure to be adopted while investigating allegations against or removing other office bearers of the University other than the Vice-Chancellor, Rector, Registrar, and Chairperson of the Service Commission pursuant to Sub-section (1) shall be as prescribed. (6) If an investigation is initiated against any office bearer pursuant to this Section, the final decision shall be made within six months. Until such final decision is made, he/she shall not be allowed to perform the work of the post he/she holds. (7) For the purpose of performing the day-to-day work to be done by the office bearer pursuant to Sub-section (6), the Chancellor may assign responsibility to the senior-most office bearer of the University. 29.

Fund of the University: (1) The University shall have its own separate Fund, and the following amounts shall be credited to such Fund:- (a) Grant amounts received from the Government of Nepal, (b) Amounts provided by any person or institution as donation, endowment, or financial assistance, (c) Amounts received as loans or assistance from foreign governments, international associations, institutions, financial institutions, or persons, (d) Amounts received from fees or any other source. (2) Before receiving any amount pursuant to Clause (c) of Sub-section (1), the University shall obtain the approval of the Government of Nepal. (3) The amount of the Fund of the University shall be deposited by opening an account in a prescribed bank. (4) The operation of the account of the University shall be as prescribed. 30. Accounts and Audit: (1) The accounts of income and expenditure of the University shall be kept in accordance with the prevailing law. Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077.(2) The audit of the University shall be carried out by the Auditor General. 31. Certificate and Amended by the Some Nepal Acts Amendment Act, 2082.Degree and Accreditation: (1) The University shall give a certificate as prescribed to a student, trainee, or researcher who has achieved the prescribed higher education. (2) The University may confer honorary degrees to domestic and foreign scholars who have made significant contributions in the educational and academic field. (3) The University may confer honorary degrees to distinguished domestic and foreign citizens. Amended by the Some Nepal Acts Amendment Act, 2082.(4) The University may recognize the academic degrees of other universities or educational institutions. (5) The degrees pursuant to Sub-sections (2) and (3) shall be conferred with the approval of the Assembly. 32. Qualifications Required for Admission to the University: The qualifications required for admission to the University shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Related to Education, 2077.32a.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, disabled, and economically disadvantaged students who fulfill the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions. (2) For the purpose of Sub-section (1), other provisions relating to basis, criteria, and classification shall be as prescribed by the Government of Nepal by a notification published in the Nepal Gazette. (3) Amended by the Some Nepal Acts Amendment Act, 2082.A student may avail the facility pursuant to Sub-section (1) only once at each level. (4) Notwithstanding anything contained in the prevailing law, seats as prescribed shall be reserved for Dalit students for admission in technical and professional higher education. (5) The University shall make provision for higher education for the sons and daughters of martyrs, disappeared persons, and persons with disabilities as provided for in the prevailing law. (6) A student who has studied in a community school from grade 6 to grade 10 shall receive a scholarship for higher education in accordance with the prevailing law. 33. Duty to Act in Accordance with National Education Policy: It shall be the duty of the University to act in accordance with the approved national education policy of the Government of Nepal. 34. Acts and Proceedings Not to Be Invalidated: No act or proceeding of the University shall be invalidated only by reason of any vacancy in the position of any office bearer or member, or any defect in the appointment or nomination

of any office bearer or member. 35. Protection of Actions Taken in Good Faith: No suit or other action shall lie against the University or any office bearer of the University in respect of any act done or intended to be done in good faith in pursuance of this Act or rules made under this Act. 36. Exemptions and Facilities for the University: (1) Notwithstanding anything contained in the prevailing law, if any document liable to registration in respect of the University is required to be registered, no registration fee shall be charged. (2) Deleted by the Income Tax Act, 2058 37. Annual Report: The annual report of the University shall be submitted to the Assembly within the prescribed period. 38.

Delegation of Powers: (1) The Assembly may, as necessary, delegate some of the powers conferred upon it under this Act or rules made under this Act to the Executive Council or the Vice-Chancellor. (2) The Executive Council may, as necessary, delegate some of the powers conferred upon it under this Act or rules made under this Act to any office bearer or any committee of the University. (3) The Academic Council may, as necessary, delegate some of the powers conferred upon it under this Act or rules made under this Act to the Faculty Board. (4) The Service Commission may, as necessary, delegate some of the powers conferred upon it under this Act or rules made under this Act to any committee of the University. 39. Communication with Government of Nepal: The University shall communicate with the Government of Nepal through the Amended by the Act Made to Amend Some Nepal Acts Related to Education, 2077.Ministry of Education, Science and Technology. 40. Consequences of Dissolution: If the University is dissolved, its movable and immovable property shall vest in the Government of Nepal. Added by the Some Nepal Acts Amendment Act, 2064.40a. Approval Required: Notwithstanding anything elsewhere contained in this Act, while making rules or taking actions on matters that cause additional financial burden to the Government of Nepal, the approval of the Government of Nepal shall be obtained. 41. Power to Make Rules: The Assembly may make and enforce necessary rules to carry out the objectives of this Act.